

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SURINAME

Complete Community Opposition How-To

This guide is built around Suriname's distinctive lever — when there is no protection at home, going over the state's head to the Inter-American human-rights system, which ordered Suriname to recognise collective land rights and to obtain a people's free, prior, and informed consent for large projects — and it names the tools you'll meet (the Inter-American Commission and Court, FPIC and consent as a veto, collective land rights, the domestic record) in plain words.

INTRODUCTION & FRAMEWORK

Suriname's law recognises **no collective land rights at all** — it grants indigenous and tribal peoples only a permission to use their lands "at the discretion of the State," revocable whenever the government pleases. So when Suriname sold **logging and gold-mining concessions to foreign companies on Saramaka territory** without asking, the **Saramaka** — a Maroon people on the Upper Suriname River — had no protection at home. They went over the state's head. They petitioned the **Inter-American Commission on Human Rights**, and then, in **2007, the Inter-American Court of Human Rights** ruled that Suriname had violated their rights to property and to legal personality, ordered the state to **recognise their collective ownership** of their territory, to **share the benefits** of any project, and — decisively — to obtain their **free, prior, and informed consent (FPIC)** before any large project on their land. A people with no rights under their own country's law had won, from an international court, the recognition and the consent their own state had denied them.

The Saramaka, a Maroon people who had no protection under Suriname's own law, drew on a toolkit that distinctively reaches outside the state. The **Inter-American Commission and Court of Human Rights** can be petitioned over the state's head, and did rule for the Saramaka in 2007 — ordering Suriname to recognise their collective ownership, to share the benefits of any project, and to obtain their consent; lawful petition, documentation, and international litigation are the tools. The **FPIC standard** it established means a large project on your land requires your **free, prior, and informed consent** — turning consent into a **veto**. **Collective land rights**, ordered by the Court, protect a people's territory where domestic law grants none. And the **domestic record** and the world's attention keep the pressure on. But these tools have real limits, and this guide states them plainly. The Inter-American ruling is a **binding order the state has been slow to fully implement** — Suriname's domestic law has lagged, and turning a court's order into real, on-the-ground recognition and consent has taken years of pressure. The **domestic ground offers little** — no collective land rights, permission revocable "at the discretion of the State" — so the strength lies outside, in the international system, which is powerful but slow and indirect. And **logging and gold-mining pressure continues** on Maroon and Indigenous lands. So aim for what this lever can deliver — collective ownership recognised, benefits shared, consent established as a veto, a concession halted for want of consent — through the Inter-American system, with the patience its slow, binding reach demands.

The Whole Strategy in One Idea

A concession sold over your head looks unstoppable when your own law gives you nothing, but a chain breaks at its weakest link — and Suriname's is its answerability to the Inter-American system. A Surinamese

fight turns on the reach to the **Inter-American Commission and Court**; on the **FPIC standard** that makes consent a veto; on **collective land rights** the Court has ordered; and on the **domestic record** and world attention that press the state to comply. Every one of those is a link you can grab — and the Inter-American reach, when home offers nothing, is the decisive one. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend months — or years — on this, work out your real situation:

- **If your own law gives you no protection, go over the state's head** — the Saramaka had no rights at home and won from the Inter-American Court.
- **If a large project is on your land, FPIC makes your consent a veto** — the Court ordered that Suriname obtain your free, prior, and informed consent.
- **If your collective ownership is denied, the Court has ordered it recognised** — collective land rights are the ground the Saramaka won.
- **If the state is slow to comply, expect a patient fight** — a binding order still took years of pressure to turn into real recognition and consent.

Read the whole guide once before you move. Two habits run through it: **when home offers nothing, reach over the state's head to the Inter-American system**, and **turn the FPIC standard into a real veto over projects on your land** — with the patience a slow, binding international reach demands. That's how the Saramaka won what their own country denied them.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

At home, the **state** grants logging and mining concessions and recognises **no collective land rights**, offering little protection. But Suriname is answerable to the **Inter-American Commission and Court of Human Rights**, which have ordered it to recognise **collective ownership** and to obtain **FPIC** for large projects. The **FPIC standard** makes a people's consent a veto. And the **world's attention** and the **domestic record** press the state to comply. Know which of these you can reach — the Inter-American system and the FPIC veto are the sharpest, home offering little.

How a Project Moves — and Where You Jump In

The concession. The state sells a logging or mining concession on your land, without asking. *Your opening:* the FPIC standard — a large project requires your consent.

The domestic dead end. Your own law gives you no collective rights. *Your opening — the distinctive one:* go over the state's head to the **Inter-American Commission and Court**.

The FPIC veto. *Your opening:* your **free, prior, and informed consent** as a veto over the project.

The compliance fight. *Your opening:* press the state, with the domestic record and world attention, to implement the Court's binding order.

Follow the Money and the Permissions

Dig up three things. **Who holds the concession and who's behind them** — the foreign logging or mining companies, and the state that sold it. **Whether your consent was sought** — because FPIC makes a large project on your land require your consent, and its absence is your lever. **What the Inter-American system has ordered** — collective ownership, benefit-sharing, FPIC — because that is the binding standard you invoke.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Inter-American Commission and Court** can be petitioned over the state's head and have ruled for the Saramaka. The **FPIC standard** makes consent a veto. **Collective land rights**, ordered by the Court, protect the territory. And Suriname's — and the region's — **Maroon and indigenous peoples, lawyers, human-rights organisations, and international allies** are the forces that reach furthest, carrying a people's cause over the state's head to the world.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you reach the Inter-American system, whether FPIC applies, and how slow the state is to comply.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Assert FPIC (consent as a veto)	30–55%	months–yr	low	A project requires your consent
Domestic remedies (limited)	10–30%	months–yr	low	Little — no collective rights at home
Petition the Inter-American Commission	30–55%	1–3 yr	mod	The case admitted and advanced
Inter-American Court ruling	35–60%	2–5 yr	mod	Collective ownership + FPIC ordered (Saramaka)
Document collective ownership	25–50%	months–yr	low	The territorial claim built
International attention + allies	30–55%	years	low	Pressure for compliance
Everything together (FPIC + Inter-American system)	35–60%	years	mod	Ownership recognised, consent a veto
Forcing the state to comply	20–45%	years	low	A binding order turned into reality

The levers that move the needle most are the **Inter-American Commission and Court** and the **FPIC standard**, backed by documented **collective ownership** and international attention. The Saramaka case shows the ceiling (a people with no rights at home winning collective ownership and an FPIC veto from an international court) and the honest floor (the domestic ground offers little, the binding order has been slow to implement, and logging and mining pressure continues). So aim for collective ownership recognised, consent established as a veto, and a concession halted for want of consent — patiently.

On cost: asserting FPIC and documenting ownership are low-cost; petitioning the Inter-American system takes lawyers and years, though human-rights organisations often carry it. The great strength is the reach over the state's head to a system that can order what home denies; the great requirement is patience, because a binding order is slow to become real.

STEP 1: TARGET IDENTIFICATION

Being against "the concession" is weak when home gives you nothing. Being specific — this project without consent, this denied ownership, this Inter-American standard — is strong. Answer five questions in writing.

- 1. What is it, and who holds the concession?** Name the project (logging, gold-mining), the foreign company, and the state that sold the concession.
- 2. Was your consent sought?** Establish that a **large project on your land** proceeded **without your free, prior, and informed consent** — **FPIC makes your consent a veto, and its absence is your sharpest lever**, as with the Saramaka.
- 3. What does your own law give you?** Likely little — **no collective land rights**, permission revocable at the state's discretion — which is why the fight goes **over the state's head** to the Inter-American system.
- 4. What has the Inter-American system ordered?** Collective ownership, benefit-sharing, and FPIC, as in the Saramaka ruling — the binding standard you invoke.
- 5. Who's your coalition?** The **Maroon or indigenous people, lawyers, human-rights organisations, and international allies** who can carry a petition to the Inter-American Commission and Court.

What this looks like in real life. A logging or gold-mining concession is sold on a Maroon people's territory without their consent, their own law giving them no collective rights. The five questions yield: the foreign company and the state; a project without consent (your FPIC lever); no domestic protection (go over the state's head); the Inter-American standard of ownership and FPIC; and a coalition of lawyers and human-rights allies. That's the Saramaka pattern — assert FPIC, and reach over the state's head to the Inter-American Commission and Court.

STEP 2: DOCUMENTATION

The difference between a people who can win over the state's head and one who can't is proof — of ownership and of the absent consent. Build it in three layers.

Layer one: the collective ownership. Document your **collective ownership** of the territory — the traditional occupation and use, the boundaries, the community's governance — because the Inter-American Court can order recognition of it, as it did for the Saramaka.

Layer two: the absent consent. Document that the **project proceeded without your free, prior, and informed consent** — the concession sold without asking — because FPIC makes your consent a veto, and its absence is the violation.

Layer three: the domestic dead end and the standard. Show that your **own law offered no protection** (no collective rights, revocable permission), and marshal the **Inter-American standard** (ownership, benefit-sharing, FPIC). Walking into the Inter-American Commission and Court with documented ownership, absent consent, and the domestic dead end is what wins the binding order.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The collective ownership** — the traditional occupation, the boundaries, the community's governance.
- **The absent consent** — the concession sold without your FPIC.
- **The domestic dead end** — no collective rights, permission revocable at the state's discretion.
- **The Inter-American standard** — ownership, benefit-sharing, FPIC, as in the Saramaka ruling.
- **The concession and the company** — the logging or mining project on your land.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a people united behind its territory, with lawyers and international allies, gives you the reach over the state's head. Build in four moves.

Root it in the people and its territory. The Saramaka fought as a people for their collective territory. Root the effort in the community, its traditional governance, and its claim to the land — the collective ownership the Court can recognise.

Assert FPIC as a veto. From the outset, assert that a **large project on your land requires your free, prior, and informed consent** — a veto. Withhold it, and record its absence, as the ground of the violation.

Get lawyers and human-rights allies for the Inter-American system. The Saramaka won because they petitioned the **Inter-American Commission and Court**, with lawyers and human-rights organisations. Reach those allies early — the fight's strength lies outside a state that offers little.

Build to last, and press for compliance. The case took years, and the binding order longer to implement. Build clear roles, a secure archive, a way to decide together, international allies, and the patience to press the state — with the domestic record and world attention — to turn the Court's order into real recognition and consent.

STEP 4: THE INTER-AMERICAN SYSTEM & FPIC

Suriname's sharpest levers reach over a state that offers nothing at home to the Inter-American human-rights system.

Going Over the State's Head — the Inter-American Commission and Court

The distinctive Surinamese lever: where your own law gives you **no collective rights**, petition the **Inter-American Commission on Human Rights**, and, if needed, the **Inter-American Court**, which ruled for the Saramaka that Suriname had violated their rights to property and legal personality, and ordered it to recognise their **collective ownership**, **share the benefits**, and obtain their **FPIC**. This reach outside the state is your strength.

FPIC — Consent as a Veto

The standard the Court established: a **large project on your land requires your free, prior, and informed consent** — a veto. Assert it, withhold it where you object, and treat a project that proceeds without it as a violation the Inter-American system can remedy.

Collective Land Rights and Benefit-Sharing

The Court ordered Suriname to recognise the Saramaka's **collective ownership** and to **share the benefits** of any project. Document and assert your collective ownership, and claim the benefit-sharing and consent the ruling requires.

The Honest Limits

Straight talk: the Inter-American system and FPIC are powerful, but the domestic ground offers little, the binding order has been slow to implement (years of pressure to make it real), and logging and mining pressure continues. So use the levers — the reach over the state's head, FPIC as a veto, collective ownership, benefit-sharing — press patiently for compliance, and count collective ownership recognised, consent established as a veto, benefits shared, and a concession halted for want of consent as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A concession becomes a rights violation. Not "we oppose the logging" but *"the state sold our land without our consent, violating our rights to property and legal personality,"* as the Court found.

A project becomes a matter of consent. *"A large project on our land requires our free, prior, and informed consent — which we withhold."*

A domestic dead end becomes an international case. *"Our own law gives us nothing — so we take our cause over the state's head, to the Inter-American Court, as the Saramaka did."*

Denied ownership becomes a court-ordered right. *"The Court ordered our collective ownership recognised — and it must be."*

Match it to the venue: the absent consent and the rights violation to the Inter-American Commission and Court; the FPIC veto to the state and the company; the collective ownership to the Court's order and the compliance fight; the cause to international allies and the world.

STEP 5: MEDIA STRATEGY

In Suriname, international attention is the distinctive lever, because the fight's strength lies outside a state that offers little — the Inter-American system and the world's conscience. International allies make the media front reach far.

Lead with the people, the land, and the denied consent, not procedure. Not "the concession was irregular" but "the state sold our ancestral land to foreign loggers and miners without ever asking us." Use your strongest material: the collective ownership, the absent consent, and the Court's ruling.

Work several audiences at once. Domestic attention where it helps; and above all the Inter-American system, human-rights networks, and international press, where a people denied rights at home finds its strength. Make it easy: clear summaries, the ownership claim, the FPIC standard.

Two hard rules. Accuracy above all — one exaggeration can weaken a human-rights case. And let the people speak for their own territory and consent, in their own voice.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Asserting FPIC (to the state / company).

Subject: Our consent is required — [project] on [territory].

"We, the [people] of [territory], record that [project] proceeds on our land without our free, prior, and informed consent, which we withhold. A large project on our land requires our consent — a veto. [Contact.]"

8B — To a human-rights organisation / lawyer.

Subject: Rights violation — [project] on [territory].

"The state sold [logging/mining] concessions on our land without our consent, and our law gives us no collective rights. As the Saramaka did, we ask your help to petition the Inter-American Commission and Court. [Contact and evidence summary.]"

8C — Petitioning the Inter-American Commission.

Subject: Petition — [people] v Suriname.

"We, the [people] of [territory], petition the Inter-American Commission on Human Rights: the state has violated our rights to property and legal personality by [selling concessions without our consent], and our domestic law offers no remedy. [Attach the record.]"

8D — Claiming collective ownership and benefit-sharing.

Subject: Our collective ownership and benefits — [territory].

"We assert our collective ownership of [territory], as the Inter-American Court ordered for the Saramaka, and claim the benefit-sharing and consent any project requires. [Attach evidence.]"

8E — Pressing the state to comply.

Subject: Implement the Court's order — [ruling].

"We call on the state to implement the Inter-American Court's binding order: to recognise our collective ownership, share the benefits, and obtain our FPIC. [Attach the ruling.]"

8F — To the foreign company.

Subject: No consent, and rights risk — [project].

"We are the [people] of [territory]. [Project] proceeds without our FPIC, on land the Inter-American system protects. This carries real legal and reputational risk. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: A state sold our land to loggers and miners without asking us.

"The state sold concessions on our ancestral land without our consent, and our own law gives us nothing. We can provide our ownership claim, the absent consent, and the Inter-American ruling. [Contact.]"

8H — Uniting the people.

Subject: Our land, our consent — let's take our cause over the state's head.

"[Project] takes our land without our consent, and our law protects us not at all. The Saramaka went over the state's head to the Inter-American Court and won collective ownership and the right to say no. Let's do the same. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — though the fight is long — do these six things, in order:

1. **Assert FPIC — a large project on your land requires your consent, which you withhold (8A).**
2. **Document your collective ownership and the absent consent.**
3. **Get lawyers and human-rights allies for the Inter-American system (8B).**
4. **Petition the Inter-American Commission, over the state's head (8C).**
5. **Claim collective ownership and benefit-sharing, as the Court ordered (8D).**
6. **Press the state to comply, with world attention (8E/8G).**

Even lean, those six reach over the state's head and assert FPIC — the Saramaka template.

WHEN THE SYSTEM IS TILTED

Suriname's field is tilted by a state that recognises no collective rights, so plan for it.

When your own law gives you nothing. That is the Surinamese reality — no collective land rights, permission revocable at the state's discretion. Don't fight only at home: go over the state's head to the Inter-American system, where the Saramaka won what home denied.

When the state is slow to comply. A binding order has been slow to implement. Press patiently — with the domestic record, international allies, and world attention — to turn the Court's order into real recognition and consent.

When a project proceeds without your consent. FPIC makes your consent a veto. Withhold it, record its absence, and treat a project without it as a violation the Inter-American system can remedy.

When logging and mining pressure continues. It does, on Maroon and indigenous lands. Keep asserting FPIC and collective ownership project by project, and keep the international pressure on.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Suriname's selling of concessions on peoples' lands without their consent, and its failure to recognise collective rights, show how the state can be captured against indigenous and Maroon peoples, so this matters.

How to spot it. Concessions sold on peoples' lands without consent; collective rights denied to keep land available; benefits to the connected while communities lose their territory; a binding ruling left unimplemented.

Who's supposed to guard against it. The **Inter-American Commission and Court** can order recognition and remedy over the state's head. **Human-rights organisations and international allies** can carry the case and press for compliance. And Suriname's — and the region's — **Maroon and indigenous peoples and their advocates** can expose the capture.

How to fight it safely. Document precisely and factually — how concessions were sold without consent, who benefits, what the Inter-American system requires — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Inter-American system, human-rights organisations, and trusted journalists rather than making accusations you can't back, since the strength lies outside a state that offers little. Pair the exposure with the FPIC and collective-ownership case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documented ownership and absent consent build your case; the Inter-American reach aims it; the people, lawyers, and human-rights allies are the muscle; FPIC and the Court's order press it; world attention forces compliance. Together they multiply. One at a time, or at home alone, they stall — and the fight is long.

Early on (weeks 1–8): assert FPIC; document your collective ownership and the absent consent; get lawyers and human-rights allies.

In the thick of it (1–5 yr): petition the Inter-American Commission and Court; win recognition of collective ownership and the FPIC order.

The long haul (years): press the state to comply with the binding order; assert FPIC project by project; hold the line for collective ownership recognised, consent established as a veto, benefits shared, and a concession halted for want of consent.

FINAL ASSESSMENT

Stopping a destructive project in Suriname can be done even when your own country's law gives you nothing — a Maroon people with no rights at home won, from an international court, the recognition and the consent their state had denied them. Hold both truths. Suriname's distinctive power is real: where there is no protection at home, a people can go over the state's head to the Inter-American human-rights system, which ordered Suriname to recognise the Saramaka's collective ownership, to share the benefits, and to obtain their free, prior, and informed consent — turning consent into a veto over what happens on their land. And the constraints are real: the domestic ground offers little, no collective rights and permission revocable at the state's discretion; the binding order has been slow to implement, taking years of pressure; and logging and gold-mining pressure continues.

Here's the discipline that wins what can be won. Root the fight in your people and its collective territory, and document your ownership, your traditional occupation and governance, and the absence of your consent. Assert FPIC from the outset — a large project on your land requires your free, prior, and informed consent, a veto — and record its absence as the violation. Then, because your own law gives you nothing, go over the state's head: get lawyers and human-rights allies, and petition the Inter-American Commission and, if needed, the Court, as the Saramaka did, to win recognition of your collective ownership, benefit-sharing, and the FPIC order. And press the state, patiently, with the domestic record and the world's attention, to turn that binding order into real recognition and consent. Count collective ownership recognised, consent established as a veto, benefits shared, and a concession halted for want of consent as wins. That is how the

Saramaka won — the reach over the state's head, and FPIC as a veto, together. So can you.